

Fourteen days after the service of subpoena to answer amended Bill. Or fourteen days after the Master's refusal to allow further time to answer.

Or fourteen days after answer to amended Bill, except where re-amended.

1. Within fourteen days after service of a subpoena to answer the amended bill, in cases where the defendant does not desire to answer the amendments.
2. Within fourteen days after the Master's refusal to allow further time in cases where the defendant, desiring to answer, has not put in his answer within eight days after the service of the subpoena to answer the amended bill, and the Master has refused to allow further time.
3. Within fourteen days after the filing of the answer in cases where the defendant has put in an answer to the amendment, unless the plaintiff has within such fourteen days obtained from the Court a special order for leave to re-amend the bill.

If the Bill is re-amended, the practice after the re-amendment will be the same as above laid down to be followed after amendment.

Optional with Defendant, to move to dismiss, or set down the cause to be heard.

The 66th Order of 1850, already given, allows the defendant the option of moving to dismiss the Bill, or setting it down to be heard. A cause may, under many circumstances, be of such a nature that it is more to the defendant's benefit to have it disposed of on argument, than put out of Court. Suits for account for instance, where the defendant expects a balance in his favour; or a bill by a vendee for specific performance, where the defendant may be desirous of having the purchase completed, which has been hitherto delayed for want of the production of the money by the Plaintiff; and numerous other cases which might be mentioned.

It is provided, however, that the dismissal of the bill for want of prosecution is a bar to a subsequent suit for the same matter, unless the Court otherwise order.

The following is the Order :—

1850.
LXVII.
Bill dismissed,
bar to future
suit for same
matter.

If the plaintiff, after the cause is set down to be heard, causes the bill to be dismissed on his own application, or, if the cause is called on to be heard in Court, and the plaintiff makes default, and by reason thereof the bill is dismissed, then and in such case such dismissal is, unless the Court otherwise orders, to be equivalent to a dismissal on the merits, and may be set up in bar to another suit for the same matter.

It will be seen that the above Order does not apply

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